

HOUSE No. 1697

The Commonwealth of Massachusetts

PRESENTED BY:

Paul K. Frost and Kenneth P. Sweezey

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to psychological evaluations for persons considered a danger to themselves or others.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/17/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/28/2025</i>

HOUSE No. 1697

By Representatives Frost of Auburn and Swezey of Duxbury, a petition (accompanied by bill, House, No. 1697) of Paul K. Frost and Joseph D. McKenna relative to psychological evaluations for persons considered a danger to themselves or others. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to psychological evaluations for persons considered a danger to themselves or others.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 131S of chapter 140 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting the following:-

3 (1) Upon issuance of an extreme risk protection order, the court shall order the respondent
4 to undergo a psychiatric evaluation. The psychiatric evaluation must be conducted by a licensed
5 mental health professional, approved by the department of public health, and must occur within
6 ten days of the issuance of the extreme risk protection order.

7 The psychiatric evaluation shall assess the following:

8 (1) The mental health status of the respondent, including any diagnosed mental illness or
9 conditions that may pose a risk to the respondent or others.

10 (2) The respondent's history of violence, threats, or self-harm, if any.

11 (3) The respondent's ability to safely handle firearms or other weapons in light of the
12 psychiatric evaluation.

13 Upon completion of the psychiatric evaluation, the results shall be submitted to the court.
14 The court shall review the evaluation findings in conjunction with any other evidence before
15 making a decision regarding the continuation, modification, or dissolution of the extreme risk
16 protection order.

17 SECTION 2. The department of public health, in collaboration with the Massachusetts
18 Trial Court, shall promulgate regulations necessary to implement the provisions of this section.